

IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

W.P.No.2092 of 2024

Shahroz s/o Sarfraz Masih Versus Additional District Judge
and others

JUDGMENT

Dates of Hearing:	09.02.2026 and 23.02.2026
Petitioner by:	M/s. Muhammad Ahsan Khan and Mudassar Hassan, Advocates.
Respondents by:	Mr. Muhammad Musarrat Nawaz Khan and Syed Haider Ali Shah, Advocates. Barrister Zain Mansoor, Assistant Attorney General assisted by Ms. Areej Omar Ramay.

If 'having it all' means having the same lives that men have traditionally had, then this is very hard for us to do. But if it means having a productive balance between professional and family responsibilities, then perhaps we are better off than the men, and should be trying to persuade them to do the same.
Rt Hon. the Baroness Hale of Richmond DBE, President of the Supreme Court of the UK

JAWAD HASSAN, J. Through this writ petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “Constitution”), the Petitioner has impugned the judgments and decrees dated 08.12.2023 and 20.04.2024 passed by the Civil Judge 1st Class, Mianwali, and Additional District Judge, Mianwali, respectively; whereby the petition for judicial separation/dissolution of marriage between the Christian spouse (the Petitioner and the Respondent No.3/Mst. Tareeza) under the Christian Divorce Act, 1869 (the “Act”) was dismissed.

(I) OVERTURE OF THE CASE

2. This judgment examines the legality of the concurrent findings of the learned Courts below dismissing the Petitioner's claim for judicial separation/dissolution of marriage between Christian spouse under the Act, and whether such findings are supported by proper evidence under the Qanoon-e-Shahadat Order, 1984 (the "QSO") and Order XX Rules 1 and 6 of the Code of Civil Procedure, 1908 (the "CPC"). The said Act was enacted to amend the law relating to the divorce of persons professing the Christian faith and to confer jurisdiction upon certain Courts in matrimonial matters.

(II) PRELUDE OF THE CASE

3. The Petitioner and the Respondent No.3, who are Christians by faith, contracted marriage under the Catholic School of Thought on 06.06.2022. He earlier filed a petition under Section 10 of the Act for judicial separation/dissolution of marriage on the ground of adultery before the Civil Judge, Mianwali, which was resisted by the Respondent No.3/wife and ultimately was dismissed vide order dated 23.11.2022. Feeling aggrieved, the Petitioner preferred an appeal; however, during its pendency, he sought withdrawal of both the main petition and the appeal with permission to file a fresh one, which was allowed. Consequently, the Petitioner filed a fresh petition for judicial separation/dissolution of marriage under Sections 7 and 10 of the Act on the main ground of cruelty against the Respondent No.3. The said petition was contested by the Respondent No.3, and out of the divergent pleadings of the parties, two issues were framed by the trial court. After recording the evidence of both sides, the learned Civil Judge dismissed the petition vide judgment and decree dated 08.12.2023. Feeling aggrieved, the Petitioner filed an appeal before the learned Additional District Judge, which also met the same fate vide judgment and decree dated 20.04.2024. Hence, this petition.

(III) PETITIONERS' SUBMISSIONS

4. Mr. Muhammad Ahsan Khan, Advocate, submitted that both the Courts below misread the pleadings of the parties and decided the case on the issue

of **adultery** by applying Sections 10 and 11 of the Act, despite the fact that the Petitioner had also sought dissolution on the ground of **cruelty**. He also submitted that both the learned Courts failed to consider the law laid down by this Court in the judgments reported as *AMEEN MASIHI versus FEDERATION OF PAKISTAN and others* (PLD 2017 Lahore 610) and *SAIMA versus ADDITIONAL DISTRICT JUDGE and others* (PLD 1922 Lahore 214), wherein it has been held that cruelty is one of the recognized grounds for dissolution of marriage under the Act and that before the promulgation of the Federal Laws (Revision and Declaration) Ordinance, 1981, Section 7 of the Act was available and the grounds of divorce under the U.K. Matrimonial Causes Act, 1973 (the “UK Act”) introduced the principle of *irretrievable breakdown of marriage*, and that the Act must be interpreted in light of the UK Act. Section 7 of the Act as amended by the Divorce (Amendment) Act, 1975, reads as follows:

“Section 7: Court to act on principles of English Divorce Court. Subject to the provisions contained in this Act, the Courts shall, in all suits and proceedings hereunder, act and give relief on principles and rules which, in the opinion of the Courts, are as nearly as may be conformable to the principles and rules on which the Court of Divorce and Matrimonial Causes in England for the time being acts and gives relief.”

Learned counsel urged that the Petitioner appeared in the witness box and deposed on oath that the Respondent No.3 behaved in such a way that he could not reasonably be expected to live with her, which portion of his testimony remained unchallenged and therefore amounts to an admission. On the other hand, the Respondent No.3, while appearing as DW-1, did not contravene this evidence and even admitted that she had been living separately for more than one and a half year, which now exceeds to two years as required under Section 10 of the Act. Therefore, the Petitioner is entitled to a decree for judicial separation/dissolution of marriage even on the basis of **“desertion.”** He argued that there is no fixed standard to determine cruelty, as it depends upon the conduct of the parties, which is to be assessed through

their statements and behavior. He submitted that both the impugned judgments reflect non-reading and misreading of material evidence and a failure to apply the settled interpretation of law laid down by the superior courts. He lastly prayed that, since the marriage between the parties has irretrievably broken down and the requirements of law stand satisfied, both the impugned judgments and decrees be set aside, and the Petitioner be granted a decree for dissolution of marriage under the Act.

(IV) RESPONDENTS' SUBMISSIONS

5. Conversely, Mr. Muhammad Musarrat Nawaz Khan, Advocate, has objected to the maintainability of this Petition on the ground that, while passing the impugned judgments and decrees, both the learned Courts below properly evaluated the evidence on record and rightly dismissed the Petitioner's Petition for judicial separation/dissolution of marriage under the Act. He added that nothing has been specifically proved regarding adultery or cruelty against Respondent No. 3, who is otherwise still willing to reconcile with the Petitioner.

(V) DETERMINATION BY THE COURT

6. Perusal of the record reveals that this was a second round of litigation, wherein the Petitioner filed a case before this Court for judicial separation/dissolution of marriage under the Act. It is noted that the trial Court framed two issues, which read as follows:

- a. *Whether the plaintiff is entitled to a decree for dissolution/separation of marriage between the parties as prayed? OPA*
- b. *Whether the plaintiff has no cause of action to file the instant suit hence suit is liable to be dismissed? OPR*
- c. *Relief.*

In order to prove his case, the Petitioner/husband appeared in the witness box as PW1, while the Respondent No.3/wife appeared as DW1. After recording their respective oral evidence, both parties closed their evidence without producing or exhibiting any material documentary proof i.e. the

Marriage Certificate, etc. The trial Court, although dismissed the petition on the ground that the Petitioner failed to annex any document to prove adultery but did not properly consider the question of “judicial separation/dissolution of marriage on the grounds of cruelty or desertion”, and failed to follow the settled dictum laid down in the judgment (**PLD 2017 Lahore 610**). On the basis of mere oral assertions, the learned Court dismissed the petition in the following manner:

8. *Admittedly, a husband can file a petition for dissolution of marriage on the grounds of adultery as mentioned in section 10 ibid Act but the right of husband to file a petition for dissolution of marriage subject to a restriction imposed through section 11 of ibid Act. Meaning thereby, whenever, a husband file a petition for dissolution of marriage against his wife in Christianity, as per section 11 ibid Act, it is mandatory for a husband to implead the adulterer as a co-respondent but in the present case, the instant petition has been filed without placing the adulterer as co-respondent. The contentions of learned counsel for the petitioner that the petitioner is not in a position to nominate the adulterer as a respondent is not supported by any solid reason as the petitioner failed in annex any document according to which, it could be ascertained that he has made positive efforts for tracing out name of the adulterer. Petitioner is also failed to annex any document according to which, it could be ascertained that the respondent/wife leading the life of a prostitute, the petitioner failed to make out his case according to the exceptions provided in section 11 of ibid Act, as the stance of the petitioner is not backed by any solid reasons/document, thereby, the same is acceptable at all.*

9. *It is also very important to state here that learned counsel for the petitioner argued that action of the respondent has caused mental distress and agony to the petitioner as well as his family members and it is also a valid ground for the judicial separation between the parties. Suffice it to say, that petitioner was firstly required to bring on record adequate evidence with regard to the respondent involved in the habit of adultery or prostitution*

10. *As discussed above, the petitioner neither through document nor by way of any direct/oral evidence could prove that the respondent is ever been involved in adultery, therefore, there is no question of any distress and agony which allegedly petitioner and other family*

members has gone through. Therefore, in view of the above said situation, this is not a case, in which the petitioner is allowed to file the petition without placing the adulterer as co-respondent. Consequently, this issue is decided against the petitioner as negative accordingly.

Thereafter, the Appellate Court also dismissed the appeal, observing that the Petitioner had failed to prove adultery in the first round of litigation and had withdrawn the petition and appeal with permission to file a fresh one, and now he could have relied on the second ground of the Respondent's alleged unbearable acts and conduct. The learned Appellate Court, however, passed the impugned judgment in a sketchy and stereotypical manner, without discussing in detail the evidence of the parties (PW/DW), and upheld the judgment of the trial Court. For ready reference, the operative paragraph of the judgment dated 20.04.2024 is reproduced as under:

Perusal of above stated provisions of law and facts of petition coupled with evidence of parties, especially the grounds taken by the appellant/petitioner for judicial separation i.e. adultery and disobedient behavior, mental distress and agony to the petitioner and his family due to the acts and deeds of respondent. It is observed that in first round of litigation as well as in second round of litigation, the appellant/petitioner hopelessly failed to name the adulterer even he failed to show any positive efforts for tracing out the adulterer nor he provided any piece of documentary evidence through which it can be ascertained that the respondent was leading immoral life. Secondly, if the second ground of mental distress and agony due to the acts of respondent was available with the appellant/petitioner then prima facie said ground was required to be mentioned in the first petition for judicial separation but said was not mentioned in the first petition, therefore, on failure to prove the allegation of adultery at the time of appeal in first round of litigation, the petitioner had withdrawn the appeal and suit with permission to file a fresh but even grant of permission and availing opportunity to mention the second ground of unbearable acts and deeds of respondent, the appellant/petitioner hopelessly failed to prove alleged acts and deeds of respondent, caused mental distress and agony to the petitioner as well as his family. The appellant/petitioner in his cross examination as a PW-1 admitted it correct that no witness accompanied him in support of his version to prove the immoral and abusive and unbearable behavior of respondent. Therefore, keeping in view the above stated facts and circumstances of the case, the learned trial court rightly decided and dismissed the petition for judicial separation of petitioner with the respondent.

7. Although both the learned Courts below dismissed the Petitioner's petition, their decisions appear to have been based largely on technical grounds rather than a proper appraisal of the merits and evidence of the case. Recently the Supreme Court of Pakistan in the judgment authored by the Hon'ble Mr. Justice Shahid Waheed, reported as "PROVINCE OF PUNJAB through the District Collector, Bhakkar versus MUHAMMAD CHIRAGH and others" (PLD 2026 SC 53), has held that:

The phrase "off on a technicality" aptly encapsulates the situation before us and underscores its complexity and implications. In our assessment, we believe that the order issued by the District Judge was flawed and ought to have been revised by the High Court. Before delving into the specific reasons for this conclusion, it is important to acknowledge that legal practitioners sometimes make unintentional mistakes when drafting pleadings or filing cases. Such errors, while regrettable, often result in outcomes that can attract sanctions or penalties. However, in the administration of justice, it is crucial to recognise that not all mistakes warrant strict punitive measures. To give life to the principle that wrong must not go unpunished, and that right must not go unenforced, a degree of leniency must be accorded to errors that do not stem from contumacy or intentional misconduct. By adopting a more forgiving approach towards certain minor mistakes, the judiciary can prevent the rigid application of A rules from hindering the broader mission of justice delivery. This perspective is vital because the judiciary is respected not because it has the technical ability to legitimise unfairness. Instead, its respect is rooted in its fundamental role as an arbiter of fairness-capable of identifying and rectifying injustices. The expectation that the judiciary must act to eliminate any form of injustice serves as a cornerstone of trust in the legal system. It is this ability to priorities substantial justice over mere technical compliance that fortifies the integrity and efficacy of our legal processes."

8. Nub of the case is not whether the allegations of adultery or cruelty are ultimately true or false; rather, the question is whether the learned Courts below have adjudicated the lis in accordance with the statutory discipline embodied in the Act, read with the settled procedural framework governing civil trials. In other words, whether the degree of judicial satisfaction mandated by law, particularly in Christian matrimonial causes, stands

demonstrably fulfilled from the record. Hence, the case falls on two moot points:

- (I) Whether the allegations of adultery and cruelty have been adjudicated after strict compliance with the evidentiary discipline required under the Code of Civil Procedure, 1908, read with Sections 10 and 12 of the Act?
- (II) Whether the plea of desertion was legally available on the facts and properly examined by the Courts below?

MOOTPOINT No.1 (Evidentiary Requirement)

9. It is evident that the impugned judgments were passed without fully considering the evidence, which amounts to non-compliance of the requirements of Order XX, Rules 1 and 6 of the CPC. For ready reference, Order XX, Rules 1 and 6 are reproduced as under:

Rule 1. Judgment when pronounced.

(1) On completion of evidence, the Court shall fix a date, not exceeding fifteen days, for hearing of arguments of parties.

(2) The Court shall, after the case has been heard, pronounce judgment in open Court, either at once or on some future day not exceeding thirty days, for which due notice shall be given to the parties or their advocates.

....

Rule 6. Contents of decree.

(1) The decree shall agree with the judgment ; it shall contain the number of the suit, the names and descriptions of the parties, and particulars of the claim, and shall specify clearly the relief granted or other determination of the suit.

(2) The decree shall also state the amount of costs incurred in the suit, and by whom or out of what property and in what proportions such costs are to be paid.

(3) The Court may direct that the costs payable to one party by the other shall be set-off against any sum which is admitted or found to be due from the former to the latter.

In view of the aforesaid provisions, this discipline assumes even greater significance in Christian matrimonial jurisprudence. The superior Courts have consistently held that the bond of Christian marriage is treated as a solemn

and enduring civil status, and its dissolution is not to be granted lightly. There exists no concept analogous to dissolution at will; relief is conditioned upon strict proof of statutory grounds as has been set out by this Court in Mst. Parveen Amanual v. ADJ I and 2 others reported as **(PLD 2009 Lahore 213)**, wherein it was observed:

“The bond of marriage between Christian husband and wife is of a permanent nature and as such the wife has to prove her case on the concrete facts after leading reliable and cogent evidence to the facts on which the claim of dissolution of marriage is based. Only then the Court can grant a decree for a judicial separation within the meaning of section 22 of the Divorce Act, 1869 or to dissolve the marriage under section 10 of the same Act. Therefore, mere assertion of the wife that she is not ready to live with the husband is not sufficient for dissolving the marriage between the petitioner and respondent No.1. The learned Additional District Judge has rightly remanded the case to the learned Judge Family Court. The instant writ petition has no force and the same is dismissed. The case shall stand remanded to the learned Judge Family Court Rahimyar Khan who shall proceed with the case from the stage on which the petitioner made better statement and after framing the issues and recording evidence regarding those issues, shall decide the matter, after issuing notice to the parties to appeal before it. The case be decided preferably within three months from the date of receipt of this order.”

The necessity of such discipline to be followed, particularly in proving adultery even for the purposes of the Act, has been further reiterated by this Court in the case reported as Saima v. Additional District Judge **(PLD 2022 Lahore 214)**, wherein it was held:

“Undeniably, under Section 10 of the Act ibid, it is clear from bare reading that unless and until anyone of the grounds as

mentioned above is not proved marriage cannot be dissolved meaning thereby to get the dissolution of marriage, the party is required to allege and prove the allegation of adultery.”

Further reliance is placed on the judgment reported as MUSHTAQ versus Mst. FAREEDA (1979 C L C 457), wherein while discussing the mode of taking evidence by the Court under Section 51 of the Act, it has been held that:

There is no doubt that the petitioner was at liberty to verify his case in whole or in part by affidavit as provided in section 51 of the Act. Ordinarily such affidavit should not be accepted without corroborative evidence of adultery for the evidence of the husband or the wife or the co-respondent alone ought to be corroborated, either by a witness or by surrounding circumstances. (See Halsbury's Laws of England, 4th Edition, Volume XIII, p. 279, paragraph 566). It is all the more necessary to avoid any possibility of obtaining dissolution of the marriage by collusion between the two spouses. Therefore, the learned District Judge ought not have passed the decree nisi on evidence by the affidavit alone.

10. It is globally settled law by the superior Courts and in procedural law of Pakistan, where the record does not reflect structured recording of evidence, formal exhibition of documents and cumulative evaluation thereof, the judicial satisfaction mandated under Section 12 of the Act cannot be said to have been lawfully attained. In matters affecting civil status and personal honour, the discipline of proof remains the cornerstone of jurisdiction. Furthermore, to discuss or elaborate reliance upon an allegation of adultery in the absence of cogent and legally admissible evidence is not only contrary to the procedural mandate of the CPC and the statutory safeguards of the Act, but also implicates the constitutional guarantee of dignity under Article 14 of the Constitution. The statutory scheme itself, particularly Section 11, which ordinarily requires the alleged adulterer to be impleaded as a co-respondent, reflects the gravity with which such a charge is treated. An imputation of adulterous conduct affects personal honour and civil status and cannot be invoked casually or sustained except upon strict proof in accordance with law. The Courts should assist in the framing of alternate grounds so far as to allow

the Christian community to seek divorce in a dignified manner without relying upon frivolous claims of adultery.

11. In this context, it is also worth mentioning that in exercise of its constitutional jurisdiction under Article 199 of the Constitution, this Court can review the judgments to ensure that the lower courts acted in accordance with law and properly considered the evidence before them. However, it must be emphasized that this Court cannot assume the functions of a civil court to re-examine evidence or to pass a decree in favor of either party. The primary responsibility for determining the facts and granting relief rests with the Civil Court, which is empowered to adjudicate disputes based on the evidence and material placed before it. This Court under its discretionary writ jurisdiction under Article 199 of the Constitution, is neither an appellate forum nor a vehicle for re-appraisal of evidence meticulously recorded by the learned forums below. It is a well-settled principle, consistently reinforced by the superior judiciary, that the Constitutional jurisdiction of this Court is not designed to undertake a roving exercise of re-evaluating factual findings or to substitute its own opinion for that of the Family court and the Appellate Authority, who are the primary fact-finding tribunals entrusted with the appreciation of evidence. While this Court retains the power to interfere where orders are suffering from jurisdictional defects, patent illegality, non-consideration of material evidence, or where the forums below have acted in violation of the law declared by the superior courts, it cannot embark upon a de novo assessment of the evidence as if sitting in regular appeal. However, where the impugned judgment demonstrably overlooks crucial admissions and fails to apply settled legal principles, as has occurred in the present case, the appropriate remedy is not for this Court to re-adjudicate the factual matrix itself, but to remand the matter for fresh determination in accordance with law. Such remand ensures that the statutory forums, vested with the original and appellate jurisdiction to evaluate evidence, perform their bounden duty to render decisions that are both legally sound and factually comprehensive, thereby safeguarding the rights of the parties through proper adjudication

rather than through this Court's limited supervisory intervention. Reliance is placed on the judgments reported as “SHAHBAZ Versus FAKHIRA BIBI” (2021 MLD 1506), “TARIQ JAVED Versus Mst. TAHIRA BIBI and 2 others” (2006 MLD 1956) and “TAHIR UMAR versus Messrs BATA SHOE (PAKISTAN) LIMITED through Managing Director and 3 others” (1991 MLD 1236).

MOOTPOINT NO.02 (Plea of Desertion)

12. In view of the above, it becomes pertinent to examine whether, on the admitted factual matrix, the case disclosed the possibility of framing an alternative statutory ground under the Act, particularly whether reliance could have been placed upon **desertion** within the contemplation of Sections 10 and 22 of the Act, or any ground otherwise available through the harmonized reading of the restored Section 7 of the Act (*since omitted*). For ready reference Sections 10 and 22 are reads as follows:

10. *When husband may petition for dissolution. Any husband may present a petition to the 1 [Court of Civil Judge] praying that his marriage may be dissolved on the ground that this wife has, since the solemnization thereof, been guilty of adultery.*

When wife may petition for dissolution. Any wife may present a petition to the 1 [Court of Civil Judge] praying that her marriage may be dissolved on the ground that, since the solemnization thereof, her husband has exchanged his profession of Christianity for the profession of some other religion, and gone through a form of marriage with another woman ;

or has been guilty of incestuous adultery.

or of bigamy with adultery.

or of marriage with another woman with adultery.

or of rape, sodomy or bestiality.

or of adultery coupled with such cruelty as without adultery would have entitled her to a divorce a mensa et toro.

or of adultery coupled with desertion, without reasonable excuse, for two years or upwards.

Contents of petition. Every such petition shall state, as distinctly as the nature of the case permits, the facts on which the claim to have such marriage dissolved is founded.

....

22. *Bar to decree for divorce a mensa et toro but judicial separation obtainable by husband or wife. No decree shall hereafter be made for a divorce a mensa et toro, but the husband*

or wife may obtain a decree of judicial separation, on the ground of adultery, or cruelty, or desertion without reasonable excuse for two years or upwards, and such decree shall have the effect of a divorce a mensa et toro under the existing law, and such other legal effect as hereinafter mentioned.

13. The Act, though historically restrictive in its structure under Section 10, does not leave the concept of desertion undefined. Section 3(9) expressly provides that “desertion implies an abandonment against the wish of the person charging it.” Further, Section 22 enables either husband or wife to obtain a decree of judicial separation on the ground of “desertion without reasonable excuse for two years or upwards.” The statute therefore recognizes desertion as a legally cognizable matrimonial wrong, conditioned upon proof of its ingredients and the prescribed statutory period.

14. Moreover, reference may be made to The Queen v. Leresche and Another (1891 QB 2418), wherein the Court of Appeal observed that desertion may be understood as the “*Wilful absenting of the husband from the society of his wife in spite of her wishes, etc. is desertion.*”

15. As per the judicial anthology, desertion is not a mere physical separation. It consists of certain essential constituent elements, namely:

- i. the factum desired: the fact of separation;
- ii. the *animus deserendi*: the intention to permanently abandon the matrimonial union;
- iii. absence of consent of the other spouse;
- iv. absence of reasonable cause for such withdrawal; and
- v. the completion of the statutory period of desertion as required under the law.

The concept may manifest either as actual desertion or constructive desertion, depending upon whether the abandonment arises from physical departure or from conduct rendering cohabitation impossible.

16. In the present case, the marriage between the parties was solemnized on 06.06.2022 and the petition was instituted on 23.11.2022. It emerges from the record that the Respondent/lady, while appearing as DW-1, did not controvert the Petitioner’s assertion that the parties had been living separately. It was further acknowledged during the recording of evidence in 2023 that the

parties had remained apart for more than one and a half years, and as of the present hearing it stands admitted that cohabitation has not resumed. The continuity of separation, therefore, assumes legal significance.

17. Since the Respondent/Ms. Tareeza, appeared before this Court during the present proceedings and when confronted with the question whether the parties were living together or in a state of separation, she acknowledged that they have been living apart, albeit maintaining limited contact telephonically. The Petitioner also appeared before the Court and stated that he has since been engaged to another person and is seeking formal separation through these proceedings. These statements further reinforce the subsisting state of separation between the parties and indicate that the marital relationship has, in substance, ceased to operate as a matrimonial union.

(VI) CONSTITUTIONAL PROTECTION OF CHRISTIAN MATRIMONIAL SEPARATION

18. Since it now stands admitted that the parties have been living apart, it becomes apparent that the constituent elements of desertion were not examined by the Courts below while framing issues. The inquiry remained confined to the originally pleaded grounds without considering that the admitted state of separation satisfied the statutory ingredients of desertion. In these circumstances, and in view of the factual position emerging on record, it would be appropriate that the matter be remanded so that proper issues may be framed and the parties be afforded an opportunity to lead evidence on any legally sustainable ground, including desertion, whether actual or constructive.

As the issue relates to divorce/judicial separation/dissolution of marriage between the Christian spouse under the Act, which has to be protected under Article 20 of the Constitution which deals with the freedom to profess religion and to manage religious institutions. For ready reference Article 20 is reproduced as under:

Freedom to profess religion and to manage religious institutions

20. Subject to law, public order and morality,

- (a) every citizen shall have the right to profess, practice and propagate his religion; and
- (b) every religious denomination and every sect thereof shall have the right to establish, maintain and manage its religious institutions.

It is worth mentioning that this Court in the judgment reported as “AZHAR ABBAS HAIDERI Versus GOVERNMENT OF THE PUNJAB and others” (PLD 2022 Lahore 278), has already interpreted the Article 20 ibid by holding that:

7. The Article 20 of the Constitution forms the part of Chapter 1, Part-II of the Constitution comprising of fundamental rights pledged to the citizens which laid down that every citizen shall have the right to profess, practice and propagate his religion. However, it is imperative to note that the recognition of this right of religion, professing and propagation thereof is not unbounded and absolute rather Article 20 of the Constitution has unequivocally stipulated that the exercise of such right is always dependent and contingent on three basic requirements/ factors i.e., subject to law, public order and morality. The significance of these three qualifying criteria can be best understood from the fact that from all other Articles of Part II, Chapters 1 and 2, which deals with the Fundamental Rights, Article 20 is the only one which begins with the phrase "subject to law, public order and morality". For the sake of clarity, Article 20 (a) of the Constitution is reproduced as under:

"20. Subject to law, public order and morality,--

(a) every citizen shall have the right to profess, practice and propagate his religion;-----

8. The qualifier phrase used in the beginning of the Article 20 of the Constitution, further laid stress on the point that the given right to profess, practice and propagate religion is guaranteed and available to such an extent that does not run contrary or cause prejudice to all these three determinatives, which in fact strike a balance between individual freedom and collective liberties on the touchstone of mutual respect and forbearance and peace and tranquility. It is otherwise open to the Constitution to say that a power granted by it may be regulated by a validly and competently enacted law by the legislature. The Honorable Supreme Court in "Zaheeruddin and others v. The State and others" (1993 SCMR 1718) also expressed similar opinion while holding as follows:--

The fundamental right, relevant hence, is the 'freedom to profess religion' but it has been made 'subject to law, public order and morality'. The Courts of other countries, which have similar

fundamental rights, have held that this right embraces two concepts; freedom to believe and freedom to act. Some of them held the former to be absolute but others said that, that too was subject to law etc. However, all are agreed that the latter, in the nature of things, cannot be absolute. According to them, conduct remains subject to regulation for the protection of the society. So the freedom to act must have appropriate definition to preserve the enforcement of that protection. The phrase 'subject to law', on the other hand, does neither invest the legislature with unlimited power to unduly restrict or take away the Fundamental Rights guaranteed in the Constitution, nor can they be completely ignored or bypassed as non-existent. A balance has thus to be struck between the two, by resorting to a reasonable interpretation, keeping in view the peculiar circumstances of each case.

This judgment (**PLD 2022 Lahore 278**) was based on the judgment of the Supreme Court of Pakistan passed by Mr. Justice Tassaduq Hussain Jillani, the then Chief Justice of Pakistan, reported as **PLD 2014 Supreme Court 699**. In this landmark judgment, the Supreme Court of Pakistan comprehensively interpreted Article 20 of the Constitution as a broad guarantee of *equal religious freedom* for all citizens — Muslims and non-Muslims alike. The Court held that Article 20 ensures both individual and collective rights of conscience, protecting citizens not only from interference by other religious groups but also from coercion within their own faith communities and made following principles in relation to interpretation of Article 20 of the Constitution:

- (i) *that Article 20 of the Constitution must be interpreted to guarantee the rights of the community as well as the right of the individual against those from his own or other religious communities - the ultimate goal being the eradication of religious intolerance in the society.*
- (ii) *that the right to religious conscience conferred under Art. 20 of the Constitution did not make any distinction between majority and minority or Muslim and non-Muslim. It was in the nature of an Equal Religious Protection Clause conferred on every citizen, every religious denomination and every sect*

thereof. Such equal religious protection clause was in the same nature as the equal justice under the law and equal protection under the law clauses. There was no distinction among citizens, religious denominations and sects thereof, as far as the right to religious conscience, was concerned.

- (iii) that the right to religious conscience was a fundamental right. It had not been subjected or subordinated to any other provision of the Constitution because it was only subject to law, public order and morality and not to any religious clauses of the Constitution. The very term law, public order and morality had been used in non religious terms as the notion of law or public order or morality was not reducible to the Islamic meanings of said terms. Therefore, Art.20 of the Constitution had a certain pre eminence in the Constitution being only subject to the general restrictions of law, public order and morality, which three terms could not be interpreted or used in such a restrictive way as to curtail the basic essence and meaning of the pre-eminent right to religious conscience.
- (iv) that the right to profess and practice was conferred not only on religious communities but also on every citizen. Every citizen could exercise such right to profess, practice and propagate his religious views even against the prevailing or dominant views of its own religious denomination or sect. In other words, neither the majority religious denominations or sect nor the minority religious denomination or religious denominations and sects against each other but protected every citizen against the imposition of religious views by its own fellow co-believers. Every citizen would necessarily include both males and females which point needed emphasis

considering the exclusion or subordination of women in relation to numerous forms of religious practices.

- (v) that as far as every religious denomination was concerned, even sects within such religious denominations had been conferred the additional right to establish, maintain and manage its religious institutions. Therefore, even sects within religious denominations had been protected against their own co-religious denominations.*
- (vi) that the right of religious conscience conferred on every citizen was a right conferring three distinct rights i.e. Right to Profess, Right to Practice and Right to Propagate. Article 20 of the Constitution did not merely confer a private right to profess but conferred a right to practice both privately and publicly his or her religion. Moreover, it conferred the additional right not only to profess and practice his own religion but to have the right to propagate his or her religion to others. Such propagation of religion had not been limited to Muslims having the right to propagate their religion but such right was equally conferred on non-Muslims to propagate their religion to their own community and to other communities.*

19. It is also pertinent to mention here that after insertion of Article 10-A of the “*Constitution*” in the list of “fundamental rights” it has become obligatory upon the Court to adhere to the procedural steps and to avoid from doing anything which caused prejudice to the rights of the Parties. Article 10-A of the “*Constitution*” provides right of fair trial and due process for determination of rights and obligations. It is also pertinent to mention here that Article 4 of the Constitution clearly states that it is inalienable right of every citizen to be treated in accordance with law and no action detrimental to the reputation, life, and liberty shall be taken except as per law. Article 4 of the Constitution

is an established practice that is deep rooted in the custom and usage of law and, therefore, it cannot be overlooked and disregarded by any Court. It is held in judgment reported as Taj Wali Shah V. Bakhti Zaman (2019 SCMR 84) that “*In fact, any right vested in a person to seek his remedy under the law should be liberally construed, as this would bolster his recognized fundamental right of access to justice.*” A well settled principle is reiterated in case titled “SYED TAHIR HUSSAIN MEHMOODI and others Versus AGHA SYED LIAQAT ALI and others” [2014 SCMR 637] read as follows: “*to apply and to adhere to law is not a mere technicality, rather it is a duty cast upon the Court as per Article 4 of the Constitution*”.

(VII) CONCLUSION

20. In view of the foregoing discussion on the moot points based on the relevant provisions of the Divorce Act, Articles of the Constitution, and relying on the judgment of the Supreme Court (**PLD 2026 SC 53**), it is held that the present lis not only involves the interpretation and application of the Act but also attracts the constitutional protection of religious freedom guaranteed under Article 20 of the Constitution. The right of Christian citizens to seek dissolution or judicial separation through civil courts is a manifestation of their freedom to profess, practice and manage matters arising out of their religious law. In the instant case, the learned courts below failed to examine the Petitioner’s claim in the light of this constitutional mandate, as neither the ground of cruelty nor the admitted state of separation was analyzed within the statutory framework of Sections 10 and 22 of the Act. Such omission constitutes non-compliance of the procedural discipline of law and also infringes the petitioner’s right to fair trial and due process secured under Article 10-A, read with Article 4 of the Constitution.

21. Accordingly, without entering into the factual controversy, this writ petition is **allowed**. The impugned judgments and decrees dated 08.12.2023 and 20.04.2024, passed respectively by the learned Civil Judge 1st Class and the learned Additional District Judge, Mianwali, are **set aside**. The matter is

remanded to the trial court for fresh adjudication strictly in accordance with law by rendering a reasoned and speaking judgment, avoiding sketchy or stereotypical observations, within two (02) months from receipt of the certified copy of this judgment.

22. Both parties shall be at liberty to move appropriate applications for framing of appropriate issues and production of additional evidence, if so advised, which shall be decided by the trial court in accordance with law, ensuring due observance of procedural fairness and the right of each party to a meaningful hearing.

23. Before parting with the judgment, the Director General, District Judiciary, Punjab is directed to circulate copies of this judgment to all District and Sessions Judges in the Punjab with instructions to sensitize the subordinate judiciary to strictly observe the procedural discipline prescribed under the Divorce Act and QSO and the constitutional protections guaranteed under Article 20 of the Constitution. The courts shall ensure that matrimonial causes of minority communities are adjudicated with due respect to faith-based autonomy, evidentiary rigor, and equality before law.

24. A copy of this judgment shall also be transmitted to the Director General, Punjab Judicial Academy, to start an appropriate **training and workshop** for the subordinate judiciary on the interpretation and application of the Christian Divorce Act and the Constitutional principles discussed herein, so as to promote uniformity, sensitivity, and procedural propriety in adjudication of such matters.

(JAWAD HASSAN)
JUDGE

Approved for reporting.

JUDGE